

26IWUD00315 26IWUD00315

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-07-27

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Tentative:

The motion to set aside the dismissal which was entered under Code of Civil Procedure section 1167.1 is denied. That statute provides, "If proof of service of the summons has not been filed within 60 days of the complaint's filing, the court may dismiss the action without prejudice." As opposed to a case dismissed for failure to file a proof of service or to appear at an order to show cause regarding proof of service where the plaintiff had failed to file a proof of service, in this action the Plaintiff appears never to have effected service. Indeed, on June 1, 2026 this court denied an application to post and mail the summons and complaint for failure to show reasonable diligence.

Section 1167.1 was enacted alongside section 1161.2, which provides that an unlawful detainer record is restricted where judgment is entered for the plaintiff after trial more than 60 days since the filing of the complaint. Granting the Plaintiff's motion to set aside the dismissal in this action would necessarily mean any judgment would be entered more than 60 days since filing the complaint and therefore frustrating the purpose of and policies supporting section 1161.2.